

In addition, or the alternative, Defendants have demonstrated to the satisfaction of the Court, based on the record presented, that they failed to timely file a responsive pleading as a result of mistake, inadvertence and excusable neglect. See Code Civ. Proc. § 473(b). The default is set aside on this ground as well.

A responsive pleading shall be served and filed within ten calendar days.

4. CU0001696 George Watson vs. General Motors, LLC

Defendant General Motors LLC's demurrer to the fifth cause of action of Plaintiff's Third Amended Complaint ("TAC"), to which Plaintiff has filed a written statement of non-opposition, is sustained without leave to amend.

Defendant's motion to strike the prayer for punitive damages in the TAC is granted without leave to amend. Plaintiff has filed no opposition to the motion; as such, the Court deems Plaintiff's failure to oppose the motion as consent to the granting of the same. See Cal. Rules of Court, rule 8.54(c) ("failure to oppose a motion may be deemed a consent to the granting of the motion."); see, e.g., *Amato v. Downs* (2022) 78 Cal.App.5th 435, 440, n.3 (unopposed motion can be granted on that basis, citing rule 8.54(c)).

5. CL0004294 Federal National Mortgage Association vs. Named Defendant

The parties shall appear for argument.

6. CL0003982 Robert Mueller vs. Named Defendant, et al.

The parties shall appear for argument.